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TAB 10



Board of Education Report

File #: Rep-141-23/24, **Version:** 1

Resolution of Intention to Dedicate an Easement, Associated with the Proposed Alley Vacation at Maxine Waters Employment Preparation Center

December 12, 2023

Facilities Services Division

Action Proposed:

Authorize: (1) the dedication of an easement to the City of Los Angeles (“City”) by adopting a Resolution of Intention to Dedicate an Easement, Exhibit E, with a vote of at least two-thirds of its members; (2) the City to reserve an easement from the alley vacation for the County of Los Angeles (“County”) to access their existing utility lines in the proposed alley vacation; and (3) the Chief Facilities Executive and/or her designee(s) to execute reasonable agreements associated with the dedication of a new curb ramp easement and vacation of existing alley and street easements.

The easement is at the Maxine Waters Employment Preparation Center and is described herein and is on file and available for public examination in the Board Secretariat's Office, 333 South Beaudry Avenue, 24th Floor, Los Angeles, California 90017.

Property:	Portion of Maxine Waters Employment Preparation Center (See Exhibits A and B) 10925 South Central Avenue Los Angeles, CA 90059
Purpose:	Dedication of Street Easements
Grantee:	The City of Los Angeles
Consideration:	None
Date of Public Hearing:	January 23, 2024
Easement to be Dedicated:	A 15-foot by 15-foot corner cut curb ramp easement at the southwest corner of East 108th Street and South Central Avenue. Please see Exhibit B.

Background:

The New Multipurpose and Auto Shop Buildings Project at Maxine Waters Employment Preparation Center (“Project”), was approved on March 25, 2004. The Project included the vacation of a 10-foot-wide T-shaped alley located south of 108th Street and between Central Avenue and Clovis Street. This alley was closed in 2005 and incorporated as part of the school site. The Project was completed in the Fall of 2009.

The conditions to vacate a street are determined by the City after submittal of an application and will expire with the passage of time. The 2006 application to vacate the alley and the applications submitted thereafter were partially completed.

On February 6, 2018, staff submitted a new application to vacate the alley and an existing 2-foot-wide street widening easement along Central Avenue. Due to the City changing its street standard, Los Angeles Unified has the opportunity to regain the unrestricted use of the 2-foot-wide area. The proposed vacation will eliminate the

street widening easement. Please see Exhibit D.

The new curb ramp easement is required to fulfill a condition of the new vacation application. The proposed easement is needed because the City's street standards have changed and is necessary to ensure public use and the City's access to maintain and repair the curb ramp.

The vacation areas currently are subject to existing street and alley easements. Upon completion of the vacation process, the City will vacate their existing street and alley easements by recording a Resolution to Vacate. However, in lieu of requiring Los Angeles Unified to relocate an existing County of Los Angeles ("County") storm drain and sewer line in the former T-shaped alley (see Exhibit D), which will result in significant cost to Los Angeles Unified, the City will reserve an easement for the County over the entire length of the T-shaped alley. This easement reservation is needed to ensure the County of Los Angeles will have access to maintain and repair the storm drain and sewer lines that serve the school and surrounding properties.

California Education Code sections 17556 through 17561 specify that a Notice of Adoption of Resolution of Intention to Dedicate an Easement include a time not less than 10 days after adoption of the Resolution to hold a public hearing by the Board. The adopted Resolution must be posted in three public places within Los Angeles Unified's boundaries no less than 10 days before the date of the public hearing and be published no less than five days before the hearing in a newspaper of general circulation within Los Angeles Unified's boundaries. The Los Angeles Daily Journal will be used for this purpose.

Maxine Waters Employment Preparation Center is an adult and career education skill center in South Los Angeles, located in Region South and Board District 7 (Tanya Ortiz Franklin), and serves approximately 6,780 adult students.

Expected Outcomes:

Adopt the Resolution of Intention to Dedicate an Easement at Maxine Waters Employment Preparation Center. Furthermore, staff anticipates the Board will authorize: (1) the reservation of an easement from the proposed vacation area for the County of Los Angeles; and (2) the Chief Facilities Executive, and/or its designee(s) to execute agreements associated with the proposed vacation.

Board Options and Consequences:

If approved, the Chief Facilities Executive and/or its designee(s) will sign the agreements necessary to complete the City's conditions for the proposed vacation and provide the authority and access needed to repair and maintain the new public curb ramp and existing storm drain and sewer lines.

If the Board does not adopt the Resolution of Intention to Dedicate an Easement at Maxine Waters Employment Preparation Center, Los Angeles Unified will not be able to fulfill the City's requirements for the proposed vacation request. Potentially, this could cause Los Angeles Unified to incur the cost to relocate the existing storm drain and sewer from the school site.

Policy Implications:

The proposed action advances Pillar 4 Operational Effectiveness Modernizing Infrastructure of the Los Angeles Unified 2022-2026 Strategic Plan by dedicating easements associated with school construction projects.

Budget Impact:

All costs associated with the Resolution of Intention to Dedicate an Easement at Maxine Waters Employment Preparation Center are included in the Project budget and funded from Bond Program funds.

Student Impact:

The dedication of an easement at Maxine Waters Employment Preparation Center will ensure the students and the community will have safe public right-of-way access near the campus. The proposed vacation will enable Los Angeles Unified to consolidate adjoining properties at Maxine Waters Employment Preparation Center.

Equity Impact:

As part of the school construction process of obtaining a permit from the City of Los Angeles Department of Building and Safety, applicants are required to have the Bureau of Engineering review and approve plans prior to a permit being issued.

Issues and Analysis:

None.

Attachments:

Exhibits A - D as follows:

- A - Legal Description for 15' x 15' Corner Cut at Central Avenue & 108th Street
- B - Exhibit Map for 15' x 15' Corner Cut at Central Avenue & 108th Street
- C - Legal Description for North-South Alley Vacation
- D - Exhibit Map for North-South Alley Vacation

Exhibit E - Notice of Adoption of Resolution of Intention to Dedicate an Easement at Maxine Waters employment Preparation Center

Informatives:

None

Submitted:

11/30/23

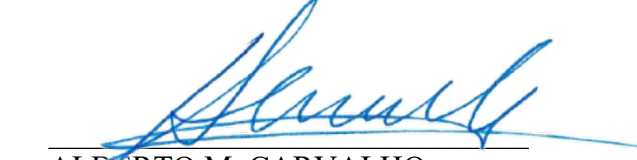
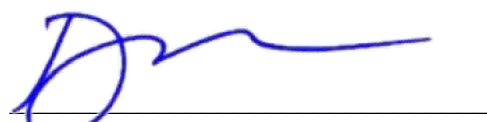
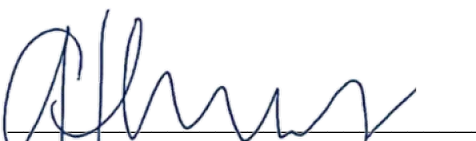
RESPECTFULLY SUBMITTED,
ALBERTO M. CARVALHO
Superintendent**APPROVED BY:**
PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations**REVIEWED BY:**
DEVORA NAVERA REED
General Counsel
☒ Approved as to form.**APPROVED BY:**
KRISZTINA TOKES
Chief Facilities Executive
Facilities Services Division**REVIEWED BY:**
NOLBERTO DEGADILLO
Deputy Chief Business Officer, Finance
☒ Approved as to budget impact statement.**PRESENTED BY:**
AARON BRIDGEWATER
Director of Facilities Planning & Development
Facilities Services Division

EXHIBIT "A"**LEGAL DESCRIPTION****15' X 15' CORNER CUT AT CENTRAL AVENUE & 108TH**

THAT PORTION OF LOT 39, IN BLOCK 30 OF TRACT 6478, IN THE CITY OF LOS ANGELES, COUNTY OF LOS ANGELES, STATE OF CALIFORNIA, AS PER MAP RECORDED IN **BOOK 68, PAGES 93 TO 99 INCLUSIVE** OF MAPS, IN THE OFFICE OF THE COUNTY RECORDER OF SAID COUNTY; DESCRIBED AS FOLLOWS;

BEGINNING AT A POINT ON THE NORTHERLY LINE OF SAID LOT 39, DISTANT 17.00 FEET FROM THE NORTHEAST CORNER; THENCE SOUTHEASTERLY IN A DIRECT LINE TO A POINT WHICH IS 2.00 WESTERLY OF THE EAST LINE OF SAID LOT 39 AND 15.00 SOUTHERLY FROM THE NORTHERLY LINE OF SAID LOT 39; THENCE NORTHERLY PARALLEL TO THE EAST LINE OF SAID LOT 39; THENCE WESTERLY ALONG THE NORTH LINE 15.00 FEET TO THE POINT OF BEGINNING.

EXHIBIT B IS INCLUDED HEREIN AND MADE A PART HEREOF.

DESCRIPTION PREPARED BY:



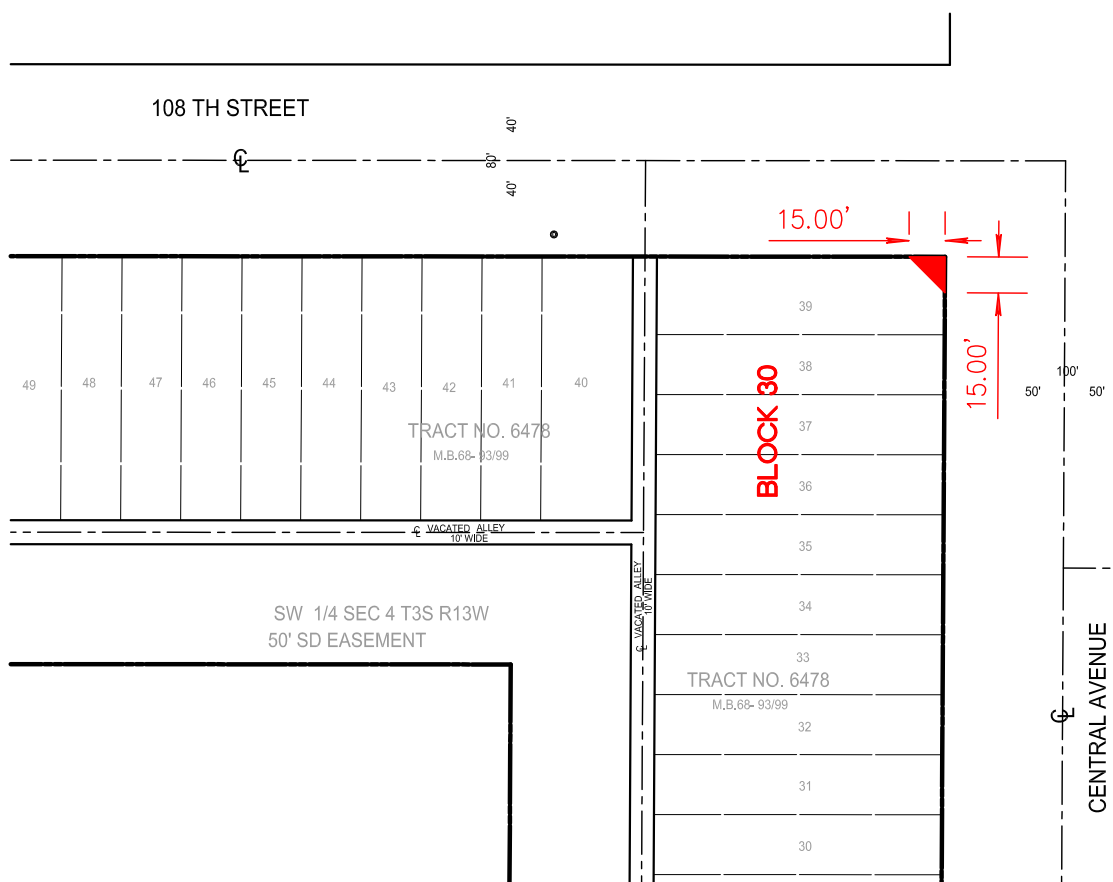
DATED: OCTOBER 31, 2022

GREGORY D. HINDSON, PROFESSIONAL LAND SURVEYOR PLS 5670

FOR AND ON BEHALF OF MOLLENHAUER GROUP



EXHIBIT "B"



G:\Projects\Survey\LA21300-LA21399\LA21315_Maxine Waters Employment Preparation Center_LAUSD\Acad Drawings\LA21315_EXHIBIT.dwg Date: 05/03/23 02:11p mkhudave



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CIVIL ENGINEERING
SURVEYING+MAPPING
LAND DEVELOPMENT

EXHIBIT B
15'x15' CORNER CUT

PREPARED FOR:

LOS ANGELES
UNIFIED SCHOOL DISTRICT

DATE:	11/04/2022
JOB #	LA21315
DRAWN	MK
SCALE	1"=80'

SHEET 1 OF 1

EXHIBIT "C"

**NORTH-SOUTH ALLEY VACATION
LEGAL DESCRIPTION**

THAT PORTION OF THAT CERTAIN NORTH-SOUTH 10.00 FOOT ALLEY LYING WESTERLY OF AND ADJACENT TO LOTS 1 THROUGH 39 IN BLOCK 30, OF [TRACT NO. 6478](#), IN THE CITY OF LOS ANGELES, COUNTY OF LOS ANGELES, STATE OF CALIFORNIA, AS PER MAP RECORDED IN [BOOK 68 PAGES 93](#) TO 99 INCLUSIVE OF MAPS, IN THE OFFICE OF THE COUNTY RECORDER OF SAID COUNTY, BOUNDED WESTERLY BY SAID NORTH-SOUTH ALLEY; BOUNDED NORTHERLY BY THE WESTERLY PROLONGATION OF THE NORTHERLY LINE OF LOT 39 IN SAID BLOCK 30; AND BOUNDED SOUTHERLY BY THE NORTHEASTERLY LINE OF THE 45.00-FOOT STRIP OF LAND DESCRIBED IN PARCEL 616 IN THE LIS PENDENS RECORDED FEBRUARY 21, 1950 IN [BOOK 32339, PAGE 280](#) OF OFFICIAL RECORDS.

TOGETHER WITH THE WESTERLY 10.00 FEET OF SAID LOTS 1 THROUGH 5 OF BLOCK 30, TRACT 6478;

ALSO, TOGETHER WITH THOSE PORTIONS OF SAID LOTS 6 AND 7 OF SAID BLOCK 30 TRACT 6478, LYING WESTERLY OF THE FOLLOWING DESCRIBED LINE:

BEGINNING AT A POINT ON THE SOUTHERLY LINE OF SAID LOT 6, SAID POINT BEING DISTANT THEREON SOUTH 89°57'30" EAST 10.00 FEET FROM THE SOUTHWEST CORNER OF SAID LOT 6, THENCE NORTH 10°59'31" WEST 50.99 FEET TO THE NORTHWEST CORNER OF SAID LOT 7

EXCEPT FROM A PORTION THEREOF ALL OF THE MINERALS AND MINERAL ORES OF EVERY KIND AND CHARACTER NOW KNOWN TO EXIST OR HEREAFTER DISCOVERED UPON, WITHIN OR UNDERLYING SAID LAND OR THAT MAY BE PRODUCED THEREFROM INCLUDING, WITHOUT LIMITING THE GENERALITY OF THE FOREGOING, ALL PETROLEUM, OIL, NATURAL GAS AND OTHER HYDROCARBON SUBSTANCES AND PRODUCTS DERIVED THEREFROM, TOGETHER WITH THE EXCLUSIVE AND PERPETUAL RIGHT OF SAID GRANTOR, ITS SUCCESSORS AND ASSIGNS, OF INGRESS AND EGRESS BENEATH THE SURFACE OF SAID LAND TO EXPLORE FOR, EXTRACT, MINE AND REMOVE THE SAME, AND TO MAKE SUCH USE OF THE SAID LAND BENEATH THE SURFACE AS IS NECESSARY OR USEFUL IN CONNECTION THEREWITH, WHICH USE MAY INCLUDE LATERAL OR SLANT DRILLING, DIGGING, BORING OR SINKING OF WELLS, SHAFTS OR TUNNELS; WITHOUT, HOWEVER, THE RIGHT TO USE THE SURFACE OF SAID LAND IN THE EXERCISE OF ANY OF SAID RIGHTS AND TO DISTURB THE SURFACE OF SAID LAND OR ANY IMPROVEMENTS THEREON OR REMOVE OR IMPAIR THE LATERAL OR SUBJACENT SUPPORT OF SAID LAND OR ANY IMPROVEMENTS THEREON, AS RESERVED BY THE PACIFIC ELECTRIC LAND COMPANY, A CORPORATION, IN DEED RECORDED JUNE 21, 1956 AS [INSTRUMENT NO. 1385](#) IN BOOK 51520 PAGE 389, OFFICIAL RECORDS.

EXHIBIT "C" (continued)

EXCEPT FROM A PORTION THEREOF THE TITLE AND EXCLUSIVE RIGHT TO ALL OF THE MINERALS AND MINERAL ORES OF EVERY KIND AND CHARACTER NOW KNOWN TO EXIST OR HEREAFTER DISCOVERED UPON, WITHIN OR UNDERLYING SAID LAND OR THAT MAY BE PRODUCED THEREFROM, INCLUDING, WITHOUT LIMITING THE GENERALITY OF THE FOREGOING, ALL PETROLEUM, OIL, NATURAL GAS AND OTHER HYDROCARBON SUBSTANCES AND PRODUCTS DERIVED THEREFROM, TOGETHER WITH THE EXCLUSIVE AND PERPETUAL RIGHT OF INGRESS AND EGRESS BENEATH THE SURFACE OF SAID LAND TO EXPLORE FOR, EXTRACT, MINE AND REMOVE THE SAME, AND TO MAKE SUCH USE OF THE SAID LAND BENEATH THE SURFACE AS IS NECESSARY OR USEFUL IN CONNECTION THEREWITH, WHICH USE MAY INCLUDE LATERAL OR SLANT DRILLING, BORING, DIGGING OR SINKING OF WELLS, SHAFTS OR TUNNELS; PROVIDED, HOWEVER, THAT SAID GRANTOR, ITS SUCCESSORS AND ASSIGNS, SHALL NOT USE THE SURFACE OF SAID LAND IN THE EXERCISE OF ANY OF SAID RIGHTS, AND SHALL NOT DISTURB THE SURFACE OF SAID LAND OR ANY IMPROVEMENTS THEREON, AS RESERVED BY SOUTHERN PACIFIC COMPANY, A DELAWARE CORPORATION, IN GRANT DEED RECORDED JUNE 10, 1968 AS [INSTRUMENT NO. 305, OFFICIAL RECORDS](#).

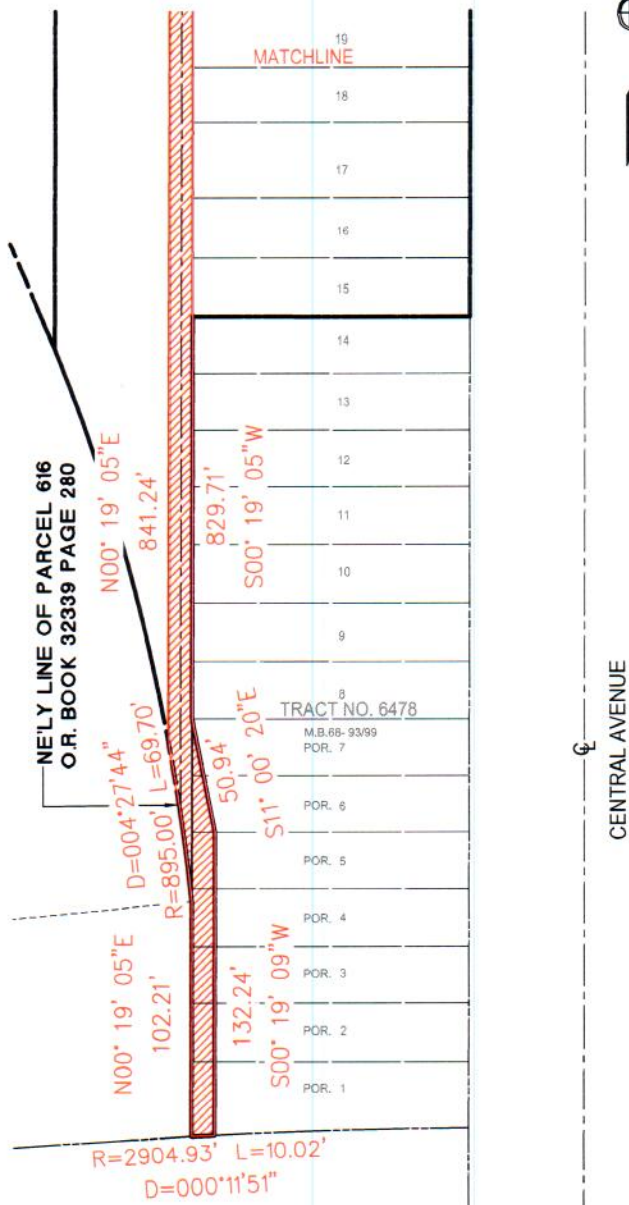
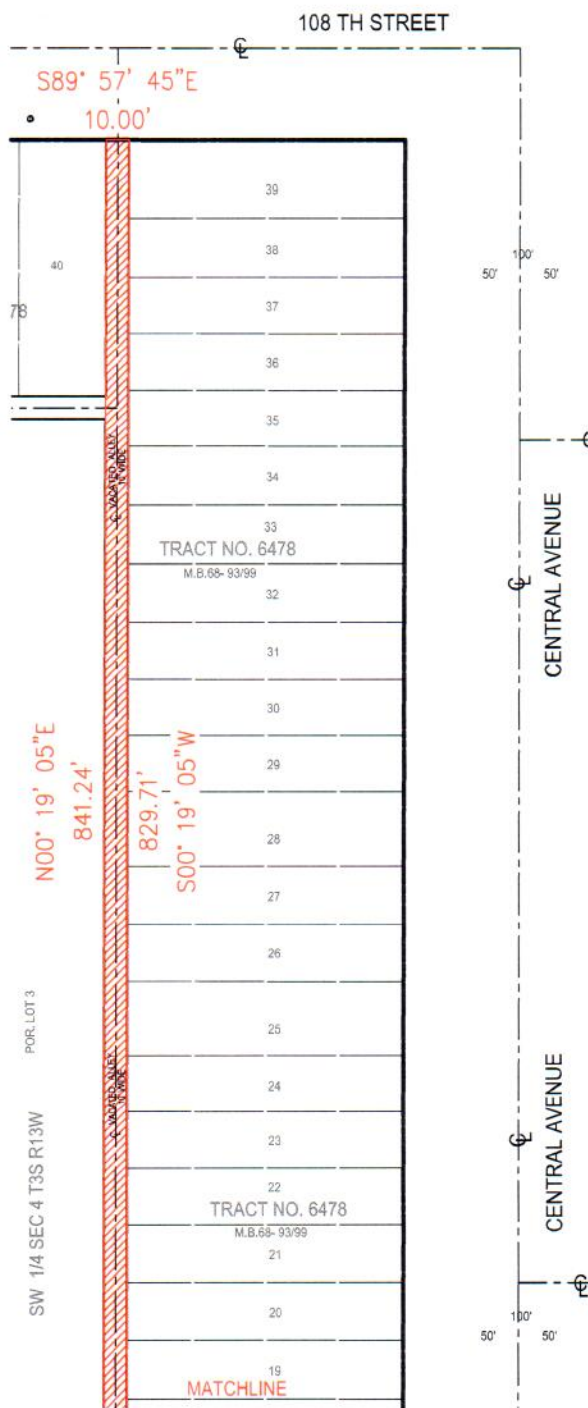
EXHIBIT D IS INCLUDED HEREIN AND MADE A PART HEREOF.

DESCRIPTION PREPARED BY:



DATED: MAY 30, 2023

GREGORY D. HINDSON, PROFESSIONAL LAND SURVEYOR PLS 5670
FOR AND ON BEHALF OF MOLLENHAUER GROUP



G:\Projects\Survey\LA21300-LA21399\LA21315_Maxine Waters Employment Preparation Center_LAUSD\Acad Drawings\LA21315_EXHIBIT.dwg Date: 05/30/23 01:23p mkhudave



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CIVIL ENGINEERING
SURVEYING+MAPPING
LAND DEVELOPMENT

NORTH SOUTH ALLEY VACATION

PREPARED FOR:

LOS ANGELES
UNIFIED SCHOOL DISTRICT

DATE:	11/04/2022
JOB #	LA21315
DRAWN	MK
SCALE	1"=150'

SHEET 1 OF 1

EXHIBIT E**NOTICE OF ADOPTION OF RESOLUTION OF INTENTION TO DEDICATE AN EASEMENT, ASSOCIATED WITH THE PROPOSED ALLEY VACATION AT MAXINE WATERS EMPLOYMENT PREPARATION CENTER**

At the December 12, 2023, meeting of the Board of Education (“Board”) of the Los Angeles Unified School District (“Los Angeles Unified”), the following resolution was adopted by at least a two-thirds vote of all its members:

RESOLVED: That the Board, in pursuance of the provisions of Sections 17556 through 17561, inclusive, of the Education Code of the State of California, does hereby declare its intention to irrevocably offer to dedicate an easement at Maxine Waters Employment Preparation Center to the City of Los Angeles, a municipal corporation, (hereinafter called Grantee) over all that certain real property situated in the County of Los Angeles, State of California, legally described on Exhibit A and also shown on Exhibit B attached hereto.

The proposed easement dedication to the Grantee will help complete the requirements of the proposed street and alley vacation request. The easement dedication will be in the form of an Owner’s Dedication deed for the street easement, as legally described in Exhibit A and also shown on Exhibit B attached hereto.

The Grantee shall be responsible for damage caused intentionally or by any negligent act or omission of the respective grantee, its agent or employees while exercising the rights granted respectively herein.

BE IT FURTHER RESOLVED: That a public meeting of this Board be held in the Los Angeles Unified Board Room, 333 South Beaudry Avenue, 1st Floor, Los Angeles, 90017, the regular place of meeting of this Board, at or about 1:00 p.m., at the Regular Board Meeting to be scheduled for January 23, 2024, for a public hearing upon the question of such dedication.

BE IT FURTHER RESOLVED: That it is the intention of the Board at the time and place fixed for such public hearing or meeting, unless a petition protesting against the proposed dedication, signed by at least ten percent of the qualified electors of Los Angeles Unified, as shown by the affidavit of one of the petitioners, be filed with this Board, to order the dedication and adopt a resolution authorizing the execution and delivery of the dedication of an easement to City of Los Angeles for public use.

Notice of the adoption of this resolution and of the time and place of holding said meeting shall be given by posting copies of this resolution, signed by the members of this Board or a majority thereof, in three public places in this Los Angeles Unified of Los Angeles County, not less than ten (10) days before the date of said meeting and by publishing a copy of this resolution once not less than five days before the date of said meeting in a newspaper of general circulation published in the Los Angeles Unified of Los Angeles County.

EXHIBIT E

IN WITNESS of the passage of the foregoing Resolution as prescribed by law, we, the Members of said Board, present and voting thereon, have hereunto set our hands the 12th day of December 2023.

 Members of the Board of Education of the
 City of Los Angeles

ACKNOWLEDGMENT

STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

I, _____, _____, for the Board of Education of the City of Los Angeles, California, hereby certify the foregoing to be a full, true, and correct copy of Resolution of Intention to Dedicate an Easement at Maxine Waters Employment Preparation Center.

By: _____

Name: _____

Title: _____

On _____ before me,

_____ (insert name and title of the officer)

personally appeared _____, who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Signature _____ (Seal)